

INTA Practice Guides Report

Trademark Enforcement Guide

Argentina

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Before initiating an infringement proceeding in this jurisdiction, a party must attempt to settle with the other party. Before initiating an infringement proceeding it is mandatory to summon the other party to a mediation procedure in an attempt to settle. However, it is not mandatory to summon the other party to a mediation procedure before initiating an injunction or precautionary measure.
- Before initiating an infringement proceeding, a party must engage in mediation or other alternative dispute resolution proceeding with the other party. Before initiating an infringement proceeding it is mandatory to summon the other party to a mediation procedure in an attempt to settle. However, it is not mandatory to summon the other party to a mediation procedure before initiating an injunction or precautionary measure.
- Before initiating an infringement proceeding, a party is required to take the following actions: none. Before initiating an infringement proceeding, a party may take the following actions: none.
- The name for such a letter is: Carta documento; the common translation is "cease and desist letter."
- Such a letter should be sent at the following time: It is advisable to send it immediately after becoming aware of the infringement, to avoid inadvertently consenting to the infringement and to act before the time limit for claiming damages expires.
- Such a letter can be sent by: the owner of the mark; an attorney for the owner of the mark.
- Specific rules/customary practices applicable to such letters include: the form or content of the letter (see below); the reasonableness of the demand; allowing sufficient time for response.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark.
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: none.
- The length of time within which to allow the recipient to respond to the letter that is

considered reasonable is: While it should be evaluated on a case-by-case basis, in general it is five days.

- The following factors are taken into consideration when determining the length of time that is considered reasonable: The time that the other party would need to evaluate the claim with its lawyers and prepare the response.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: avoidance of penalties or cost awards; may help ascertain that infringement was inadvertent; may help ascertain whether alleged infringer has meritorious defenses; results may be achieved more quickly and at lower cost; may provide a basis for a claim of willful infringement; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.
- The potential consequences of sending such a letter include: plaintiff may be deprived of an interim ex parte order on the first date of hearing because the defendant has been put on notice; destruction of evidence; loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; the claim may be barred by delay or acquiescence; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is only one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark, which is: the Federal Courts for Civil and Commercial Matters.
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; the equitable owner of a mark.
- If there is more than one registered proprietor/owner, they need not all join in instituting the proceeding.
- Trademark infringement proceedings are decided by a judge with no jury. The judge's decision could be appealed and then reviewed by a panel of three judges.
- The time limit for initiating trademark infringement proceedings is: There is no limit for initiating trademark infringement proceedings. An action may be initiated at any time provided that the mark is still used. However, there is a three-year legal time limit to claim for damages.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; mediation (The mediation is a mandatory pretrial procedure; however, the judge is empowered to request the parties to go through a mediation procedure during the judicial proceeding.); discovery; expert discovery; preliminary motions (to dismiss, for preliminary injunction or temporary restraining order); filing of briefs/written arguments; oral hearing; oral testimony/examination of witness; judgment/decision; damages (or other financial relief) assessment.
- The average amount of time from the instituting of infringement proceedings through trial/final hearing is: between one and two years.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: between six months and one year.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: common law of tort; case law.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered trademark, they need not all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: if the judge considers that there is no danger in the delay (*periculum in mora*), as this is one of the requirements to grant such an exceptional measure.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly (Please note: The order to immediately stop using the mark that is granted by the judge during an injunction is provisional. The definitive end to the infringement will be obtained after going through a legal action in which the trademark owner proves its prior rights and the infringement by all means of evidence available.); it may save costs; obtaining or preserving evidence; reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; potential for a damages claim under the bond or cross-understanding.
- An ex parte injunction remains in place: until further order by the court.
- The defendant is notified of the grant of an ex parte injunction: by the plaintiff.
- The plaintiff must notify the defendant within the following time frame: three months.
- The procedure for applying for an ex parte injunction includes the following: motion; supporting documentary evidence; order; posting bond, cross-understanding or other security.
- The amount of the bond or cross-understanding is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction.
- The factors considered in the granting of an ex parte injunction are: inadequacy of damages as a remedy; whether the status quo should be preserved; likelihood of success on the merits; urgency; timeliness with which plaintiff sought the injunction.

- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements (admissible but not usual); documents; affidavits (admissible but not usual); samples of infringing product(s); the receipt for purchase of the infringing product; notary attestation of the purchase of the infringing product or of the printout of websites.
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to:compensate the defendant for damages suffered from the injunction;forfeit its bond, which is paid to the defendant (If the bond is not sufficient to pay the amount fixed by the judge to compensate for damages, the plaintiff must pay the remaining amount.).
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately:between USD 10,000 and 50,000.
- The costs of an ex parte injunction are recoverable as follows: If the plaintiff prevails, it is possible to request the reimbursement of the legal cost (i.e., the official fees, the costs for a notary attestation and/or the costs for translation of documents). To that end, the plaintiff should file a brief requesting the reimbursement, supported by evidence of the legal costs. This brief will be conveyed to the defendant, who will be able to accept or reject paying the costs. If the defendant rejects paying the costs, the judge will render a decision.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between two and 10 days.
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”). Please note: If the judge grants the search and seizure order, the plaintiff will have to initiate a legal action to prove its prior rights and the infringement. Should the infringement not be proved, the plaintiff will have to compensate the damages that the measure caused to the owner of the premises.
- The following party or parties will be present at the inspection: the marshall, sheriff or other law enforcement officer; the party who obtained the order; the party against whom the order is granted (if the judge allows forced entry, the party against whom the order is granted may not be present.); the party's/parties' legal representative(s).
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The grant of an ex parte injunction can be appealed.
- Appeal of a decision for grant of an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision for denial of an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are not available to claimants seeking emergency relief.
- In order to apply for an interim inter partes injunction, it is necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include:prohibitory (to prohibit the defendant from performing certain acts);mandatory (to require the defendant to perform certain acts);

- The purpose of an interim inter partes injunction is:to restrain further infringing activities until trial or a further hearing;to prevent the consequences of an infringement or violation;to obtain or preserve evidence;to ensure the effectiveness of the eventual remedy;to preserve the status quo;to prevent irreparable injury;
- The strategic benefits of obtaining an interim inter partes injunction include:it may put an end to the infringement and litigation quickly;it may save costs;putting the defendant at a strategic disadvantage at the beginning of the case;obtaining or preserving evidence;ensuring the availability of the requested remedy;ensuring the availability of compensation for damages;getting an assessment of the merits by the court;reducing potential damage caused by infringement;
- The risks of seeking an interim inter partes injunction (if it is not granted) are:increased costs of the proceedings;prejudicial adverse determination;resolution of potentially dispositive issues on an incomplete or not-well-developed record;
- An interim inter partes injunction remains in place:until a decision is made on the main proceedings.until further order by the court.
- The procedure for applying for an interim inter partes injunction includes the following:motion, with notice to all parties;supporting affidavits or declarations;supporting documentary evidence;responsive affidavits or declarations;live presentation of evidence;discovery;order;
- The factors considered in the granting of an interim inter partes injunction are:inadequacy of damages as a remedy;whether the status quo should be preserved;
- The following forms of evidence are admissible in support of an interim inter partes injunction application:oral testimony of witnesses;documents;affidavits;samples of infringing product(s);
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to:
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately:between U.S. \$10,000 and \$50,000.
- The costs of an interim inter partes injunction are recoverable as follows: After filing of a court action to claim damages.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from filing of the application to issuance of the injunction):less than 10 days.
- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”).
- The following party or parties will be present at the inspection:the judge(s);the marshal, sheriff or other law enforcement officer;the party/parties’ legal representative(s);
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction can be consolidated with the trial or final determination on the proceeding.
- The grant of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.

- Further appeal of the grant of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision for grant of an interim inter partes injunction can be expedited.
- The denial of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision denying an interim inter partes injunction can be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction is the same as the standard for obtaining an ex parte injunction.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: res judicata and statute of limitations.

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances: there are no material factual disputes; there is no arguable case or defense (i.e., there is no reasonable prospect of the party succeeding in the proceedings);
- Summary judgment can be requested by the following parties: plaintiff; defendant;
- The applicant for summary judgment must: make an application to the court; file a written statement containing the appropriate facts, argument and legal support; file supporting documents or other evidence; obtain permission of the court; file a statement of undisputed facts;
- A ruling on a motion for summary judgment may always be appealed.
- A summary judgment may be appealed on the following grounds: the court improperly resolved disputes about material facts; the court made an error of law; new evidence is found after the issuance of summary judgment;

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings can be expedited through an early trial or hearing on a preliminary issue under the following circumstances: There is a risk of losing the witness testimony.
- Trial or hearing of a preliminary issue can be requested by the following parties: plaintiff; defendant.
- The applicant for trial or hearing of a preliminary issue must: file a memorandum containing the appropriate facts, arguments and legal support.
- For the court to grant a trial or hearing of a preliminary issue, the following conditions must be met: the determination of the preliminary issue is likely to have a beneficial impact on the conduct of the proceedings.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including

samples/photos of allegedly infringing items);expert evidence;oral testimony;survey evidence (uncommon).

- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings:documentary evidence;expert evidence;oral testimony;survey evidence.
- A claimant must present or give notice of any evidence on which it will rely at the commencement of the proceedings. The evidence that the claimant wishes to gather during the proceeding has to be listed on the complaint. Then, during the evidentiary stage, the parties have to gather the evidence listed in their briefs (complaint or answer thereof): the experts' reports, the answers of public and private offices, affidavits, witnesses' statements, etc.
- A defendant must present or give notice of any evidence on which it will rely at the time of the initial response to the claim.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings:at the request of the tribunal;at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of:oral testimony of witnesses;deposition;documents;surveys (uncommon);physical objects;expert testimony.
- It is possible to introduce surveys in evidence for the following issues:whether a mark is famous or well known;genericness.
- The use of survey evidence is subject to the following requirements: none.
- The length of an average trial or final hearing in a civil action for trademark infringement is: none. This is a written proceeding.
- The nature of the proceedings is:adversarial, i.e., the proceedings are driven by the parties and their representatives (e.g., the litigants control and present evidence) and the decision maker plays a relatively passive role.
- A trial or final hearing includes the following: Not applicable. There are no trials or final hearings in trademark infringement proceedings.
- Witnesses are examined by:the judge;the lawyers.
- As part of trial preparation, the parties do the following:nothing.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: approximately a year. This term refers to the closing of the arguments, as there is no final hearing in our legal system for this kind of proceeding.
- The decision may be appealed within the following time frame: five business days.
- Appealing a decision is of right; no permission is needed.
- There is only one court to which an initial appeal can be made, which is: the Federal Court of Appeal.
- The appeal court reviews:both the facts of the case and legal issues.
- Further appeal is possible to the following court: Supreme Court (only in exceptional cases).
- Further appeal is not granted as a matter of right; permission is required.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a

judgment: immediately, or within a reasonable amount of time if cessation of use involves some actions by the defendant.

- A judgment may be enforced by way of the following proceeding(s): sentence-enforcement proceeding.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: court fees; bond or security for costs; copying costs (for producing documents, in discovery, typically); notary attestation; translations.
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between USD 20,000 and 50,000.
- The successful party in a trademark infringement claim cannot expect to recover any of the attorney fees incurred (as distinguished from damages awarded).

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff may be required to provide security for any costs that may eventually be awarded against it only if the plaintiff does not have a domicile or properties in the country.
- A defendant is not required to provide security for costs after proceedings are initiated.
- Application for security for costs is made via the following procedure: deposit in the Judicial Bank or taking out insurance.
- For the court to grant security for costs, the following conditions must be met: the claimant is resident outside the jurisdiction.
- An application for security for costs can be made at the following stage of the proceedings: before answering the complaint.
- In granting security for costs, the court may make the following orders: the amount of the security; the manner in which the security must be given; the time frame in which the security must be given.
- An order for security for costs may be appealed under the following circumstances: The plaintiff may appeal the order for security for costs if it considers it not to be applicable or that the amount of the security is excessive. The defendant may appeal the order for security for costs if it considers that the amount of the security is not sufficient.
- If security is ordered, it is customarily provided in the form of: bond/payment to the court; third-party guarantee.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: accounting of defendant's profits and actual damages.
- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff.
- Where both damages and an accounting of profits are available and a party proves both, the party will receive both.
- Determination of the type and amount of remedy is not part of the trial on liability and occurs only after a final judgment on liability has been made.
- The following non-monetary remedies are available for trademark infringement: injunctions; delivery up of infringing labels, packaging or products; destruction; disposal; removal or obliteration; public dissemination of judgment; recall of infringing products; identification of supplier.

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